

## VARA Investor and Marketplace Alert

12/04/2023 - VARA is issuing this investor and marketplace alert in relation to the Virtual Asset (VA) Exchange OPNX (operating on opnx.com), **launched on 04 April 2023**.

Investors should note the following:

1. **Unregulated Operations:** OPNX.com is not regulated by VARA and any/all VA Activity being carried out by them in/from the Emirate of Dubai is being performed on an unregulated basis;
2. **Unauthorised Products/Services:** OPNX.com claims to offer exchange services for complex VA products including but not limited to derivatives and tokenized bankruptcy claims. These products have not been reviewed by VARA, and may not be suitable for all investors;
3. **Dubai Law No. (4) of 2022:** mandates that all VA Activity must be regulated in order to be deemed permissible in this jurisdiction, and as such, OPNX is not legally authorised to provide any VA services from/in the Emirate of Dubai; and
4. **Cabinet Resolution No. 111/2022:** advises the market to not engage with unregulated VASPs
5. Any promotions, advertising, solicitation and/or marketing of opnx.com or its native token FLEX has not been approved by VARA, and OPNX is hence **not permitted to offer, promote or advertise** any of its products or services in/from Dubai, or to residents of the Emirate.

Given that OPNX's products and services are not permitted to be made available to Dubai residents, the market may wish to notify VARA at [varaconnect@vara.ae](mailto:varaconnect@vara.ae) if you have been (i) a subject of any of OPNX's solicitation/ promotional activities; or (ii) their services have been made available to you.

VARA is the competent entity in charge of regulating, supervising, and overseeing Virtual Asset services in the Emirate of Dubai (excluding the Dubai International Financial Centre).

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